THE CALIFORNIA STATE UNIVERSITY
Office of the Chancellor
400 Golden Shore
Long Beach, California 90802-4275

(213) 590-5691

Date: September 8, 1995

To: Presidents

From: Barry Munitz
Chancellor

Subject: Intellectual Property - Campus Policies
Executive Order No. 644

I am transmitting to you five (5) copies of Executive Order No. 644 which addresses the authority of each President to issue policies concerning the rights and protocols regarding intellectual property on each campus of the California State University.

The President is responsible for implementing this Executive Order and for maintaining the campus repository and index for all Executive Orders.

Please address any questions you may have regarding this Executive Order to the Office of General Counsel.

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Attachment

Distribution: Vice Presidents, Academic Affairs
Vice Presidents, Business Affairs/Administration
Deans, Extended Education
Business Managers
Chancellor's Staff
Academic Senates (Campuses)
Academic Senate Systemwide

THE CALIFORNIA STATE UNIVERSITY
Office of the Chancellor
400 Golden Shore
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Executive Order No.: 644

Title: Intellectual Property - Campus Policies

Effective Date: September 7, 1995

Supersedes: No Prior Executive Order

This Executive Order is issued pursuant to Sections 1 and 2 of Chapter III of the Standing Orders of the Board of Trustees of The California State University.

Authority to Adopt and Revise Campus Policies

Effective August 4, 1961, the Board of Trustees approved a "Statement of General Principles in the Delegation of Authority and Responsibility" which delegated to the campuses of the then California State Colleges, among other things, the authority to develop and revise from time to time policies relating to intellectual property rights and responsibilities together with protocols associated with those rights and responsibilities. Campuses have since that time developed and revised policies that address both copyrights and patents together with appropriate protocols.

This Executive Order is issued to gather into one document and to highlight the importance of intellectual property rights to the California State University system. A number of developments have combined to encourage this emphasis: the maturing of the California State University as a modern, comprehensive university, changes in information technology, and new emphases in technology transfer as part of the University's mission. In light of this change in environment, presidents should ensure that campus policies addressing intellectual property are current and comprehensive. After review of the intellectual property policies on the campus, presidents are encouraged to submit them for review by the Office of General Counsel.

Authority to License or Sell Intellectual Property

Authority to transfer intangible intellectual property rights for valuable consideration has also been delegated to the campus presidents for some years. The most recent expression of this delegation appears in Executive Orders 370 (issued December 31, 1981) and 409 (issued January 5, 1983). These Executive Orders, among other things, conveyed to campus presidents the authority sell personal property belonging to the California State University when the president determines that the sale is in the best interests of the California State University and the sale is for consideration based on fair market value.

Contracts which are proposed to be executed for the transfer of these rights should also be reviewed by the Office of General Counsel prior to execution.

Barry Munitz, Chancellor

Date: September 7, 1995